

Satish Chandra v. State of U.P. & Ors.

Allahabad High Court · Division Bench · 11 November 2019 · Writ - C No. 14541 of 2019 · **Writ disposed; consider new connection on Annexure 4.2 indemnity bond.**

HEADNOTE

A co-tenure holder refused a new electricity connection for want of co-owners' no-objection is to have the application considered on furnishing the indemnity bond in Annexure 4.2 of the U.P. Electricity Supply Code, 2005. The Executive Engineer must hear objections, if any, of other co-tenure holders before passing orders, within four weeks of production of the certified copy, indemnity bond and application.

FACTUAL SUMMARY

Satish Chandra was sanctioned a tube-well electricity connection on agricultural land, but the licensee did not install it. He sought a writ for grant of the connection. The licensee said the land was jointly held, co-owners had not consented, no-objection affidavits had been found false, and co-tenure litigation was pending. The petitioner, one of several co-tenure holders, had not supplied a no-objection from the others. An impleadment application by co-tenure holder Ahibaran Singh remained; his counsel was absent at the final hearing.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

new connection — co-tenure holder — Annexure 4.2 indemnity bond

HOLDING

Where a co-tenure holder is refused a new electricity connection for want of no-objection from other co-tenure holders, the request is to be considered on furnishing the indemnity bond prescribed vide Annexure 4.2 of the U.P. Electricity Supply Code, 2005; before any order is passed, the Executive Engineer shall hear objections, if any, of other co-tenure holders. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF GRANTING THE NEW AGRICULTURAL CONNECTION

Left to the Executive Engineer after the Annexure 4.2 indemnity bond and hearing of co-tenure objections. ¶ 1

NOT DECIDED — IMPLEADMENT OF CO-TENURE HOLDER AHIBARAN SINGH

Counsel for the impleadment applicant was absent even in the revised call; the petition was disposed without ruling on impleadment. ¶ 1